OFFICE OF THE EXECUTIVE ENGINEER, MECHANICAL & HOSPITAL DIVISION JAMMU

NOTICE INVITING TENDER
(Short Term)

MHDJ/e-NIT 163 of 2024-25 **Dated: 04..12.2024**
Due : 11.12.2024

On behalf of the President of India, e-tenders in two cover system on turnkey basis are invited from registered/reputed firms having sufficient relevant experience for the work mentioned below:

S. No	Description of work	**Project Authority**	Estt	AAA/ TS	**Earnest Money Deposit**	Cost of tender document	Time of completion	Eligibility Criterion of Bidder
1	**CAMC OF 13 PASSENGERS, 02 NO'S LIFTS (JOHNSON MAKE) INSTALLED AT GMC, JAMMU.**	**Principal GMC & Associated Hospital Jammu**	4.20 LACS	ACCORDED	**Rs.9000 .00** in the Shape of **CDR/FDR/TDR valid for 12 months pledged** to the Executive Engineer Mechanical and Hospital Division GMC Jammu	**Rs 200.00** in the shape of Challan through J&K Govt. Treasury indicating Treasury Voucher No. & date and also indicating the name of work duly credited to **0059-PWD** (Revenue) and uploading a copy of treasury challan / receipt on e-tendering portal. **OR** The bidder may deposit tender fee in the shape of e-Challan through Account no. **009701010000 2163 in the name of Executive Engineer Mechanical & Hospital Division Jammu** Name of Bank: J&K Bank Town Hall Jammu Branch **Code:0097 IFSC code: JAKA0TNHALL MICR CODE: 180051025**	AS PER SCOPE OF WORK	OEM/Authorized /Registered & Reputed firms having sufficient experience as per Annexure **"C"** Similar **nature** of work

THE NIT CONSISTING OF Qualifying INFORMATION, ELGIBILITY CRITERIA, BILL OF QUANTITIES (BOQ) SETS OF TERMS & CONDITIONS OF CONTRACT & OTHER DETAILS CAN BE VIEWED / DOWNLOADED FROM THE WEBSITE www.jktenders.gov.in.

Sd/-
Executive Engineer
Mechanical & Hospital Division
Jammu

OFFICE OF THE EXECUTIVE ENGINEER, MECHANICAL & HOSPITAL DIVISION JAMMU

General Terms and Conditions

Name of Work: CAMC OF 13 PASSENGERS, 02 NO'S LIFTS (JOHNSON MAKE) INSTALLED AT GMC, JAMMU.

The Bids shall be deposited in electronic format on the J&K Govt. website www.jktenders.gov.in

1. The hard copies of original documents along with Bid security Declaration should be submitted only by the bidder who is declared as L1 after opening of financial bids in the office of **Executive Engineer Mechanical & Hospital Division Jammu**

2. The complete bidding process will be online.

3. The Technical bids shall be opened online in the Office of Executive **Executive Engineer Mechanical & Hospital Division Jammu**

4. In case of holidays/office happens to be closed on the date of opening of the bids, bids will be opened on the next working day at the same time and venue.

5. The Financial bids of qualifying participants / tenderers shall be opened online in the Office of **Executive Engineer Mechanical & Hospital Division Jammu**

6. **Technical Bids must be accompanied with cost of Tender document in shape of challan through J&K Govt. Treasury indicating Treasury Voucher No. & date and also indicating the name of work duly credited to 0059-PWD (Revenue).**

7. **It is presumed that bidder is agreed upon all the terms and conditions of e-NIT and also thoroughly read the scope of work / Technical Specifications and has accepted all in total and is well versed with the state's Laws / Rules of e-tendering.**
8. The bids for the work shall remain valid for a period of 180 days from the date of opening of bids.
9. The Bid shall be cancelled:-
   a) Any bidder/ tenderer withdraws his bid/ tender during the period of bid validity or makes any Modifications in the terms and conditions of the bid.
   b) In case contractor fails to execute the agreement within 05 days after fixation of contract
10. **Instruction to bidders regarding e-tendering process:**
    a) Bidders are advised to download bid submission manual from the "Downloads" option as well as from "Bidders Manual Kit" on website www.jktenders.gov.in to acquaint with bid submission process.
    b) To participate in bidding process, bidders have to get 'Digital Signature Certificate (DSC)' as per Information Technology Act-2000. Bidders can get digital certificate from any approved vendors.
    c) The bidders have to submit their bids online in electronic format with Digital Signature. No Financial bid will be accepted in physical form.
    d) List of documents to be scanned and uploaded within the period of bid submission i.e.:
       i) Cost of Tender document in shape of challan through J&K Govt. Treasury indicating Treasury Voucher No. & date and also indicating the name of work duly crediting to 0059-PWD (Revenue) and uploading a copy of treasury challan / receipt.
       a. **Earnest Money Deposit/Bid security in shape of CDR/FDR/TDR valid for 12 months or more pledged to Executive Engineer Mechanical & Hospital Division Jammu**.
       ii) Other documents comprising of copies of PAN card, Latest income tax Clearance Certificate/return, GST Registration Certificate, and Completion Certificate
       iii) Technical specifications as per Annexure "A".

    Note: The above documents are to be uploaded on the website before opening of technical bid

    a. The bidders are advised to accept and sign each leaf of the tender document with stamp/seal before uploading on the portal.

Note: - Scan all the documents on 100 dpi with black and white option.

11. The department will not be responsible for delay in online submission due to any reasons.

12. Bidders may contact office of the **Executive Engineer Mechanical & Hospital Division Jammu** for any guidance for getting DSC or any other relevant details in respect of e- tendering process trough email or in writing during office hrs on working days only**(email for enquiry mhchgmch@gmail.com)**

13. Bidders are advised not to make any change in BOQ (Bill of Quantities) contents. In no case they should attempt to create similar BOQ manually. The BOQ downloaded should be used for filling the rate inclusive of all taxes and it should be saved/uploaded with the same name as it contains.

14. The rates and prices shall be quoted by the bidder entirely in Indian Rupees and the rates quoted shall be deemed to include price escalation and all taxes upto completion of the work unless otherwise, specified.

15. Bidders are advised to use "My Documents" area in their user on J&K Govt. E-Tendering portal i.e. www.jktenders.gov.in to store such documents as is required.

1. **Scheme of bidding process:** The bid submitted by the Bidder shall be in two separate parts.

   A) PART I: This shall be named technical Bid and shall comprise of:

   i) Scanned copies of all documents listed in 10 (d) of SBD (Hard copies only to be submitted only after the bidder is declared L1)

   B) PART II: It shall be named Financial Bid and shall comprise of:

   i) **Item rates price offer as specified in subject matter—the financial bid (i.e. rates offered in the BOQ) shall be submitted & opened online only. (No hard copy of Price BOQ shall be submitted**

16. **Terms and Conditions:**
    a) The detailed terms & conditions of the NIT are laid down in Annexure "B" of this tender document.
    b) The intending bidders are advised to visit the site to ascertain the exact quantum of work before quoting their rates.

17. **Bid Prices:**
    i) The Contract for the work shall be as described in NIT.
    ii) The Bidder shall quote for the mentioned job in bid form.
    iii) The prices to be quoted by the intending tenderer shall include the supply and installation of all equipment at site, ancillary material and other items whatsoever required for carrying out the job to fulfill the intent and purpose as laid down in the specifications whether specifically mentioned or not. The prices/rates quoted shall be inclusive of all taxes, duties, packing, forwarding, freight, transit insurance and all other levies as applicable by the Central as well as UT Government including the WCT as applicable in the J & K UT Govt. on work contracts for the completion of the work. The successful tenderer/ contractor, on completion of the contract/work, shall be issued a certificate on prescribed format from the **Executive Engineer Mechanical & Hospital Division Jammu** for the purpose of proof of payment of such tax. Failure to include all other taxes and duties will not entitle the contractor to any extra claims from the Department. The contractor's rates shall remain firm and fixed during the currency of the contract.
    iv) The rates and prices quoted by the Bidder shall remain fixed for the duration of the contract and shall not be subject to adjustment on any account.

18. **Bid Validity:**
    i) Bids shall remain valid for a period of 180 days after the deadline date for bid submission. A bid valid for a shorter period shall be rejected by the Department as non-responsive.
    ii) In exceptional circumstances, prior to expiry of the original time limit, the Department may request the bidder to extend the period of validity for a specified additional period. The request and the bidder's responses shall be made in writing. A bidder may refuse the request

without forfeiting his earnest money. A bidder agreeing to the request will not be required or permitted to modify his bid, but will be required to extend the validity of his earnest money for a period of the extension.

19. **Preparation of Bids:**
    i) Language of Bid is English.
    ii) All documents relating to the Bid shall be in the language specified in the tender document.

20. **Format and Signing of Bid:**
    i) The bid shall be typed or written in indelible ink and shall be signed by a person or persons duly authorized to sign on behalf of the bidder. All pages of the Bid shall be signed by the person or persons signing the Bid.
    ii) The Bid shall contain no overwriting, alterations or additions, except those to comply with instructions issued by the Departments, or as necessary to correct errors made by the Bidder. In that case such corrections shall be made by scoring out the cancelled portion, writing the correction and initialing and dating it by the person or persons signing the Bid.

1. **Submission of Bids:**
    i) The Department may extend the deadline for submission of bids online by issuing an amendment, in which case all rights and obligations of the Department and the bidders previously subject to the original deadline will then be subject to the new deadline.

a) The bid submitted shall be out rightly rejected:-

i) **If the scanned copy of cost of tender document (non-refundable) in the shape of Challan through J&K Govt. treasury is not uploaded.**

ii) **Earnest Money Deposit in shape of CDR/FDR/TDR valid for 12 months or more pledged to Executive Engineer Mechanical & Hospital Division Jammu is not uploaded.**

iii) **If bidder submit/upload the copy of price bid / BOQ in cover-1st.**

iv) If the bidder does not provide an undertaking in shape of Affidavit (**Notary Attested) for Rs 100/- of currency of tender dates on non Judicial stamp paper as per Format Enclosed at Annexure "D".** The Stamp paper should also have clearly mentioned the **1st party name as contractor/ Firm name and 2nd party name as Executive Engineer Mechanical & Hospital Division Jammu along with reference of e-Nit no.**

I) The bid submitted shall be liable to be rejected:-

i) If the bidder does not upload all the documents as stipulated in the bid document.
ii) If any discrepancy is noticed between the documents as uploaded at the time of submission of bid and hard copies of L1 bidder (declared after technical and commercial evaluation as per Annexure "A") submitted physically after opening of the financial bid in the office of tender opening authority.

2. **Fundamental breach of contract will include:**
    i) Continuous stoppage of work for a period of 03 days without authorization of Engineer-in-charge.
    ii) Contractor is declared bankrupt.
    iii) Any evidence of involvement of contractor in corrupt practices.
    iv) Contractor delays the completion of work beyond stipulated time of completion.
    v) Pursuant to the process of termination of defaulted contract, the Department reserves the right to invite fresh tender for the balance work at the risk and cost of defaulter contractor.

3. **Major labour laws applicable to establishment engaged in building and other construction work:**
    i) Compliance with Labour Regulation Laws of U.T.
    ii) Specification/Quality Control: All items of works shall conform to specifications as per latest IS specifications/ any other relevant prescribed specifications.
    iii) Insurance: Insurance cover to Labour / Machinery / Work / Plant material / Equipment by the contractor shall be mandatory and is sole responsibility of contractor.

iv) Laws Governing the Contract:-The contract shall be governed by Laws of the land.
v) Labour Laws applicable as enforced in the U.T of Jammu and Kashmir

Earnest Money:

i) The earnest money amount shall be in the form of CDR/FDR/TDR of a nationalized/scheduled bank having branch in Jammu issued in favour of **Executive Engineer Mechanical & Hospital Division Jammu**. The CDR/FDR shall be valid for 12 months or more after the last date of receipt of bids or after the submission of performance security whichever is later.

ii) The Bid not accompanied by an Earnest Money shall be out-rightly rejected.

iii) If in case contractor failed to start /complete the work, within the stipulated time period, his CDR/Earnest Money shall be forfeited after termination of the contract. Besides, defaulting contractor shall be debarred from taking works in the Department at least for one year.

iv) Earnest money deposit shall be released after successful completion of the work and verification by the competent authority. However, the earnest money of unsuccessful tenderers shall be released after finalization of the tender.

Sd/-
(Er. Vishal Mahajan)
Executive Engineer
Mechanical & Hospital Division
Jammu

OFFICE OF THE EXECUTIVE ENGINEER, MECHANICAL & HOSPITAL DIVISION JAMMU

ANNEXURE "A"
TECHNICAL SPECIFICATION/ SCOPE OF WORK

MHDJ/e-NIT 163 of 2024-25 **Dated: 04..12.2024**
Due : 11.12.2024

Name of Work: CAMC OF 13 PASSENGERS, 02 NO'S LIFTS (JOHNSON MAKE) INSTALLED AT GMC, JAMMU.

S.NO.	DESCRIPTION OF JOB	UNIT
1.	**CAMC of 13 Passenger, 02 No's lifts (Johnson make) installed at GMC, Jammu for 01 year from the date of allotment order**. Technical specifications of lifts are as below Load carrying capacity; 884 kgs approx and 13 persons. Speed: 1 metre/sec approx. No of opening and stoppages: 07 The job includes Servicing, Cleaning and replacement of various items like batteries, fans, anti-rusting of doors, internally as well as externally, servicing of Electric Motors, Gearbox, control panel, checking of steel wire ropes etc. **CAMC includes following routine maintenance on Monthly basis:** • To check all bearings, oil rings, oil change, etc. The machine should be carefully checked and repaired for abnormal temperature rise. • To check and repair all relays and contacts as well as their movement and repair, if necessary. • To check brake action and adjustment if necessary. • To check and test **Automatic Rescue Device (ARD)** • To check and repair movement of door switches, gate switches and emergency stop switches. • To check and repair indicator lamps. • To check and adjust leveling differences, brake slippage, acceleration, deceleration and riding comfort. • To clean ropes if necessary. • To turn grease cups for speed governors and compensating pulleys. • To oil all pins of door operation and door opening mechanisms. • To clean and repair brake wheels and shoes. • To oil electric brake pins. • To clean interior of car control switches with vacuum cleaner. • To check and test all safety devices and repair/replace, if required. • To check and repair flexible cable. • To clean and oil safety gears. • To clean traction machines, relays panels, control panel, starter panels, selectors, governors, car top, car gates, sills and pits. • To check and repair door shoe, movement of limit switches. To charge gear oil and motor oil, if necessary. • To check and repair the operation of terminal limit switches and final limit switches, governor switches. • To check and repair the traction ropes for broken wire, wear elongation and even tension. Adjustment if necessary. • To remove the dust inside the traction machines and control panels using electric blower. • To clean and repair the indicator lamps • To check the voltage of rectifiers and thrusters • To check and repair the operation of safety gears. • To check oil for oil buffers to be provided, if necessary. • To check and clean the hall buttons and contacts. • To check and repair the compensating chains or ropes. • To check and oil the bearing of door motors. • To grease the secondary sheaves, car top sheaves and counterweights. • To check the wear of guide shoes of cars and counterweights • To clean the wire connection box of every landing and car cages. Tighten all screws and check the conditions of cables at conduit inlets and outlets. • To check and repair the conditions of worm gear and thrust bearing of the gear boxes. • To check and tighten screws of control panels, starters panels and relay panels. • To remove the dust inside the landing indicator switches by electric blower.	**01 complete Job**

	• To dismantle, clean and adjust the electromagnetic brake of gearless machines. • To charge gear oil and motor oil. • To check and tighten screws and foundation bolts of traction machine, secondary sheaves, exterior of lift frame, guide rail, guide rail clamps and bracket etc. • To test the over current relays • To provide all labour, materials, tools and transport to carry out annual inspection and load test according to the requirement of the employer. • All the scheduled maintenance services described above shall be properly programmed and agreed with the Engineer-in-charge in order not to affect operation of the lift systems and service provider will submit a report every month in the Office of AEE concerned. The cost of replacement of any defective part of the lift will be borne by the service provider. Complete Job includes cost of material, labour charges, carriage and all taxes etc.	
1.1	**CAMC of 13 Passenger, 02 No's lifts (Johnson make) installed at GMC, Jammu for 02 year**	**01 complete Job**
1.2	**CAMC of 13 Passenger, 02 No's lifts (Johnson make) installed at GMC, Jammu for 03 year**	**01 complete Job**

NOTE: - 1.) The bidders are requested to visit the site to get acquainted with the nature and quantum of job.

Sd/-
(Er. Vishal Mahajan)
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Mechanical & Hospital Division
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Annexure "B"

TERMS AND CONDITIONS

The tenderers should bear in mind and comply with the following instructions and terms & conditions while tendering for the work/contract on turnkey basis as per scope of work and also as per terms and conditions of the detailed tender document:

1. The tenderer should inspect the site of the proposed work and fully acquaint himself with the working conditions before quoting their rates as the job is of turnkey basis. It will be construed that the tenderer has studied the site conditions completely and satisfied him with respect to the same.

2. **Definitions:** In constructing the terms and conditions of this tender document or of the documents forming part thereof, unless the context otherwise requires, the following words and expressions shall have the meanings hereinafter assigned to them.

i) "Department" shall mean **Executive Engineer Mechanical & Hospital Division Jammu** represented by The **Executive Engineer Mechanical & Hospital Division Jammu**, and/or his authorized representative.

ii) "Engineer-in-charge" shall mean **Executive Engineer Mechanical & Hospital Division Jammu** and/or his authorized representative.

iii) "Contractor" shall mean the tenderer whose tender has been accepted and who is authorized to enter into an agreement with the Department for execution and completion of the works tendered for by him.

iv) "Works" shall mean all works to be executed by the contractor in accordance with the specifications and scope of work as specified in the tender document.

v) Notice in writing or written Notice shall mean a notice or a communication in writing, typed or printed, sent either under registered post, ordinary post or electronic form to the last known private or business address or delivered personally by hand to the contractor.

vi) Words incorporating the singular only also include the plural and vice versa.

viii) The Marginal Headings and notes shall not be deemed to be part of this contract or taken into consideration in the interpretation or construction of this contract.

3. **Rates:** The rates quoted shall be FOR site, which will include the cost of transportation of materials to the site, storage at site, all handling at site and incidental expenses, all taxes such as GST, entry tax, toll tax at Lakhanpur and octroi etc. and the fixing in position for which the items of work is intended to be operated.

4. **Price Escalation**: No cost escalation on any account shall be entertained in the quoted rates and the rates quoted shall be firm & final and shall remain valid till the completion of the contract

5. **Tender Acceptance:** The acceptance / approval of the tender will rest with the **Executive Engineer Mechanical & Hospital Division Jammu** who does not bind himself to accept the lowest tender and reserves to himself the authority to reject any or all of the tenders received without assigning any reason(s). Conditional tenders shall be out rightly rejected.

The **Executive Engineer Mechanical & Hospital Division Jammu** also reserves the right of accepting the whole or any part of the tenders received and the tenderers shall be bound to perform the same at the quoted rates.

6. **GST:** GST as applicable under law.

7. **Commencement of work: The contractor shall commence work on site from the date of issue of work order/letter of intent**

8. **Site Supervision:** The work shall be carried out under the direction and supervision of the Engineer- in-charge or his representative at site. The contractor shall intimate the name of their accredited representative who would be supervising the installation and would be responsible for taking instructions for carrying out the work on day to day basis.

9. **Quality:** The decision of the Engineer-in-charge with regard to the quality of the material and workmanship will be final and binding and the material/equipment rejected by the Department shall be immediately removed by the contractor from the site.

10. **Time of completion:** **As per scope of work**

11. **Extension in time:** If the contractor shall desire an extension in time for completion of the works on the grounds of his having been un-avoidably hindered in its execution or on any reasonable ground certified as such by the Engineer-in-charge, he shall apply to the **Executive Engineer Mechanical**

& Hospital Division Jammu within **02 days** of the date of such event. The **Executive Engineer Mechanical & Hospital Division Jammu** may on reasonable grounds therefore authorize such extension as in his opinion is necessary for completion of the works in its entirety.

12. **Penalty:** In the event of contractors failure, neglecting declining or delaying the supplies / installation or in the event of any damage occurring or being caused or in the event of any default or failure in complying with any of the terms and conditions of the contract, the govt. shall with or without prejudice any other remedy available to it under any law for the time being in force in the state:

a. Terminate the contract after 30 days notice.
b. Recover the amount of loss caused by damage failure or default including the consequential damage as may be determined by the department and /or
c. Recover the extra cost, if any, involved in allotting the contract to other party and/or.
d. Impose a penalty in form of liquidated damages on accounts of delay beyond the scheduled delivery period subject **to 0.1% value of the contract per day** and not exceeding 10% value of the contract and /or.
e. Forfeiture of **earnest money/security deposit**
f. **The firm shall be blacklisted for the future business.**

13. **Addition/Alteration in work contract:** No addition/alteration in the work shall be allowed without prior approval from the competent authority i.e. **Executive Engineer Mechanical & Hospital Division Jammu**. However, any addition/ alteration exceeding 2% of the value of contract value that improves the overall performance of the system shall be allowed at L.M.R. subject to approval from Chief Engineer.

15. **Contract Signing:** After acceptance of the contract the tenderer shall sign the necessary contract **papers/agreement within 05 days of the intimation.** Expenses for the agreement including cost of stamp papers etc. shall be borne by the contractor. The delay or failure to execute the agreement shall in no way affect the time of completion of work which will be reckoned from the date of placement of supply order/ work order/ letter of intent.

16. **Employee State Insurance:** ESI charges, if applicable on the workforce employed, shall be borne by the contractor.

17. **Terms of Payment:**

Payment shall be made towards the cost of **CAMC on half yearly basis** after verification thereof by the Assistant Executive Engineer in charge of the works for satisfactorily performance of the system. GST and Income tax as applicable shall be deducted at source at the time of release of payment as per the rules prevalent at such time. **Also, service report on monthly basis of the lifts duly verified by the concerned sub division shall be submitted along with the bill.**

During CAMC period, the successful bidder shall replace all defective parts and attend to all repairs/break downs and undertake stipulated number of preventive maintenance visits to every user installation site. The cost of spare parts for all replacements has to be borne by the successful bidder during the period of comprehensive warranty.

18. **Earnest Money:**

i) The earnest money amounting shall be in the form of **CDR/FDR/TDR** of a nationalized/scheduled bank having branch in Jammu issued in favour of **Executive Engineer Mechanical & Hospital Division Jammu**. **The CDR/FDR/TDR shall be valid for 12 months or more after the last date of receipt of bids or after the submission of performance security whichever is later**.

ii) **The Bid not accompanied by an Earnest Money shall be out-rightly rejected.**

iii) If in case contractor failed to start /complete the work, within the stipulated time period, his CDR/Earnest Money shall be forfeited after termination of the contract. Besides, defaulting contractor shall be debarred from taking works in the Department at least for one year.

v) **Earnest money deposit shall be released after successful completion of the work/CAMC of said period and verification by the Concerned AEE**. However, the earnest money of unsuccessful tenderers shall be released after finalization of the tender.

vi) The renewal of CAMC for subsequent years will be extended subject to the performance of the firm to be furnished by Assistant Executive Engineer concerned. However the firm has to **deposit CDR/Bank Guarantee @2% valid for 12 months of the total value of CAMC for subsequent year accordingly, if department extended CAMC.**

19. **Watch and ward of equipment/material:** The contractor shall be responsible for the watch and ward of his equipment / materials aforesaid. In case of any loss or damage to the said equipment /

material etc. on any account, the contractor shall make good the loss or replace the deteriorated material at his cost and expenses and the Department shall in no case be liable to pay any compensation.

20. **Currency of bid and payment**: The rates and prices shall be quoted by the bidders entirely in Indian Rupees. Accordingly, all payments shall be made in Indian Rupees.

21. **Indemnity:**
The contractor shall make the Department harmless and shall settle all compensation claims arising as a result of accidents etc. aforesaid during the execution of the works at his own cost.

22. **Damage to works during or after execution**: If the contractor or his workers break, deface, injure or destroy any part of the structure or other property in the vicinity of the works belonging to any person in or on which they may be working, such structure, road kerbs, embankments, fence enclosure, water pipes, cables, drains, electrical or telephone posts, or wares, trees, grass or grassland or cultivated ground contiguous to the premises on which the work or any part of it is being executed shall make the same good at his own cost and in default, the Engineer-in-charge shall cause the same to be made good and deduct the cost thereof from any sums that may due to the contractor under this contract or from his security deposit for other works under the Department.

23. **Materials, Plants & appliances**: The contractor shall arrange at his cost all materials, plants, tools, appliances and temporary works required for the execution of the works.

24. **Force Majeure**: Any failure or omission to carry out the provisions of the contract shall not give rise to any claim by the department or the approved supplier/contractor one against the other if such failure or omission arises from an "Act of God" which shall include all natural calamities such as fires, earthquakes, floods, hurricanes, strikes, riots, embargoes or from any political or other reasons beyond the control of parties including war, whether declared or not, civil war or a state of insurrection.

25. **Decision of the Executive Engineer to be final**: Except where otherwise specified in the contract, the decision of the **Executive Engineer Mechanical & Hospital Division Jammu**, shall be final, conclusive and binding upon the contractor on all questions relating to the meaning specifications, design, drawings, the instructions mentioned and the quality of workmanship or materials/equipment used for the works.

26. **Subletting**: The contractor shall not assign or sublet the works in whole or part without the written permission from the competent authority & incase the contractor assign or sublet the contract or attempt to do so. The contract will be terminated and actions as deemed fit shall be taken by the department.

27. **Jurisdiction of Court:** For any dispute arising out of this contract the Hon'ble High Court of Jammu &d Kashmir at Jammu only shall have jurisdiction.

29. All other terms and conditions shall be governed by PWD Form No. 25 of J&K Government.

30. All other terms and conditions as reflected in NIT shall also be applicable.

31. **ARBITRATION CLAUSE:** If any question, dispute or difference whatsoever, arises between the firm & the Department/Government in relation to or in connection with this contract either of the parties may give notice in writing of such questions, dispute or difference and the same be referred to the arbitration of a person to be mutually agreed upon or failing such agreement within thirty days of receipt of such notice of person appointed by the Jammu & Kashmir government. This submission shall be deemed to be a submission to arbitration within the meaning of the Jammu & Kashmir Arbitration Act. In witness thereof the parties hereto have signed this agreement on the dates respectively mentioned against their signatures. The provision of J&K Arbitration Act Samvat 2002 and of the rules there under and statutory modification thereof shall be deemed to apply to the arbitration disputes if any regarding reference to courts shall be subject to jurisdiction of J&K courts only.

32. The hard copies of original documents along with **EMD** in the shape of **CDR/FDR/TDR** should be submitted only by the bidder who is declared as L1 after opening of financial bids in the office of **Executive Engineer Mechanical & Hospital Division Jammu within seven (07) days, failing which bid liable to be rejected**

33. **The complete bidding process will be online.**

34. If any item is not mentioned / incorporated in scope of work of NIT, but necessary for successful commissioning of the job, it shall be deemed to have been incorporated for which no extra cost shall be paid by the Department.

35. The bidders are requested to visit the site to get acquainted with the nature and quantum of job.

36. **Cancellation:** The Department reserves the right to cancel the order in case of fault on the part of the contracting agency and also prior to the receipt of the intimation regarding taking in hand execution of work against the order. No, claim whatsoever, shall be tenable against the department on this account.

37. Overall lowest bidder shall be treated **as "L_1".**

39. SITE/WORKS SUPERVISION: The work shall be carried out under the supervision of Engineer-in Charge or his representative at site **(AEE SD-1st Division JAMMU).**

40. DAMAGE TO WORKS: If the contractor or his workers break, deface, injure or destroy any part of the structure or other property in the vicinity of work site, belonging to any person or the department, the same shall have to be made good by the contractor at his cost.

36. Period: The **Comprehensive Annual Maintenance contract is valid for a period of 01 year and extendable on yearly basis.** However the work order for CAMC shall be **extendable for next year** on the basis of performance of the firm to be furnished by the **AEE CONCERNED, Mechanical & Hospital Division, Jammu/Medical authorities.** Also, the firm has to **deposit CDR/Bank Guarantee @2% valid for 12 months of the total value of CAMC for subsequent year accordingly, if department extended CAMC**

Sd/-
Executive Engineer
Mechanical & Hospital Division
Jammu

ANNEXURE "C"

LIST OF DOCUMENTS TO BE SCANNED AND UPLOADED WITHIN THE PERIOD OF BID SUBMISSION

1) Cost of Tender document in shape of challan through J&K Govt. Treasury indicating Treasury Voucher No. & date and also indicating the name of work duly crediting to **0059-PWD (Revenue)** and uploading a copy of treasury challan / / receipt on e-tendering portal. OR The bidder may deposit tender fee in the shape of e-Challan through **Account no. 0097010100002163** in the name of Executive Engineer , Mechanical & Hospital Division, Jammu

2) Name of Bank : **J&K Bank, Town Hall, Jammu**.
Branch code : **0097**,
IFSC code : **JAKA0TNHALL,**
MICR CODE : **180051025**

3) Earnest Money Deposit in shape of CDR/FDR/TDR valid for 12 months or more pledged Executive Engineer , Mechanical & Hospital Division, Jammu

4) Copy of **PAN card**

5) Latest **Income Tax Clearance Certificate/return (ITR)(A.Y 2024-25)**

6) Copy of **GST Registration Certificate.**

7) **The firm should be registered on JKPWDOMS**

8) Similar Nature Works Completed Certificate along with work order/allotment order copies from Govt./Semi Govt. During Last 07 Years Ending 30.11.2024 As Mention Below :-

03 Similar Nature Completed Works Costing Not Less Than The Amount Equal To **40% each** Of The Estimated Cost.
Or
02 Similar Nature Completed Works Costing Not Less Than The Amount Equal To **50% each** Of The Estimated Cost.
Or
01 Similar Nature Completed Works Costing Not Less Than The Amount Equal To **80% each** Of The Estimated Cost

9) Intending bidders have to sign & stamp bid acceptance form i.e, **Annexure "E"** with confirmation of **Yes or No for item no. 1 to 05** in respect of terms and conditions of e-Nit, failing which bid is liable to be rejected.

10) The Bidder should give an undertaking in shape of Affidavit (**Notary Attested) for Rs 100/- of currency of tender dates on non Judicial stamp paper as per Format Enclosed at Annexure "D".** The Stamp paper should also have clearly mentioned the **1st party name as contractor/ Firm name and 2nd party name as Executive Engineer, MHCH Division GMCH Jammu along with reference of e-Nit no.**

11) **Tender document (SBD)** duly signed & stamped on each leaf should also be uploaded.

12) **The firms shall have mandatory local services setup i.e within Jammu so as provide the prompt services to avoid inconvenience to the patient care.**

13) **Latest valid Authorized distributorship or latest valid Authorized dealership certificate from OEM (ORIGINAL EQUIPMENT MANUFACTURER) or Authorization from OEM to quote the tender.**

1. **Note The intending bidder, in case OEM shall submit a self declaration on their letter head confirming that they are regular in manufacturing supply, installation, testing and commissioning of equipment.**
2. **In case other than OEM/ Authorized dealer, any bidder having similar nature experience shall submit an undertaking from the OEM regarding :**
   a) Authorization certificate.
   b) The OEM will unconditionally support the tenderer technically throughout the execution of contract for the useful life of the system, and
   c) OEM provides all the spares required for healthy functioning of the equipment.
3. **ADDITIONAL PERFORMANCE SECURITY FOR UNBALANCED BID**
   The successful bidder L1 shall have to deposit an additional performance security in the shape of CDR / FDR/ B.G before award of contract in case the bid of the successful bidder is found to be unbalanced and the following scale shall apply there to:-

S.NO	**Percentage of unbalanced bid viz -a- viz Adv.cost on account of low rate**	**Additional performance security**
1	Upto and including 15% below	Nil
2	>15% upto and including 20% below	5% of the Advertised cost
3	>20% upto and including 25% below	10% of the Advertised cost
4	>25% upto and including 30% below	15% of the Advertised cost
5	>30% below	20% of the Advertised cost

The condition with regard to APS in case of Abnormally low bids (ALB's) shall remain as per the prevision of JKPWD manual 2020

1. If the successful bidder L1 fails to submit the APS (**additional performance security) failing which the tender will be cancelled and his bid will not be considered for the same work in case of fresh tender**.

2. The additional performance security shall be released only after successful completion of work.

Sd/-
Executive Engineer
Mechanical & Hospital Division
Jammu

ANNEXURE "D"

On Rs 100/- Stamp paper
(Notary Attested)

FORMAT FOR AFFIDAVIT

1. I, do hereby certify that all the statements made in the Tender no.:_____dated _____are true & correct.

2. The undersigned also hereby certifies that neither our firm M/S_____ have abandoned any work in erstwhile Mechanical Engineering Department Jammu or any other department nor any contract awarded to us for such work have been rescinded during the last five years period prior to the date of this bid.

3. The undersigned hereby authorize(s) and request(s) any bank, firm or corporation to furnish pertinent deemed necessary and requested by the department to verify this statement or regarding any (our) competence and general reputation.

4. The undersigned understands and agrees that further qualifying Information may be requested and agrees to furnish any such information at the request of the department/project implementing authority.

Signature:-
Name:-
Designation:-
Name:-
Address:-
Date:-
Place:-

OFFICE OF THE EXECUTIVE ENGINEER, MECHANICAL & HOSPITAL DIVISION JAMMU

ANNEXURE "E"

Bid Acceptance Form

MHDJ/e-NIT 163 of 2024-25 **Dated: 04..12.2024**
Due : 11.12.2024

Name of Work: CAMC OF 13 PASSENGERS, 02 NO'S LIFTS (JOHNSON MAKE) INSTALLED AT GMC, JAMMU.

1. Payment clause

Terms of payment:- As per Annexure"B" of e-NIT, Sr. No. 17	(Yes/No)……..

2. Delivery / Completion period

As per e-nit	(Yes/No)……..

3. Bid Validity period

Valid for a period of 180 days from the date of opening of tenders	(Yes/No)……..

4. Terms and conditions

As per Annexure "B" of e-NIT	Yes/No)……..

Seal & signature of the Tenderer

Signature Not Verified
Digitally signed by Vishal Mahajan
Date: 2024.12.04 16:04:47 IST
Location: Jammu and Kashmir-JK